

25CHCV03967 25CHCV03967

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25CHCV03967 Hearing Date: August 28, 2026 Dept: F47

Dept. F47

Date: 8/28/26

Case #25CHCV03967

MOTION TO QUASH

SUBPOENA

Motion filed on 4/14/26.

MOVING PARTY: Defendant The Santa Clarita Community

College District and specially appearing Non-Party Erin Tague

RESPONDING PARTY: Plaintiff Dianne Van Hook

NOTICE: ok

RELIEF REQUESTED: An order quashing the subpoena

duces tecum of Plaintiff Dianne Van Hook issued upon non-party, Michele Schottelkorb, Director of Antelope Valley Community College District (AVCCD) on the following grounds: (1) Plaintiff's subpoena did not comply with CCP 1985.3, 1985.6, and 2020.410; (2) Plaintiff's subpoena seeks to invade Tague's constitutional right to privacy; (3) Plaintiff's subpoena seeks documents that are irrelevant and not reasonably calculated to lead to the discovery of admissible evidence; and (4) Plaintiff's subpoena is vague and is not limited in time or scope.

RULING: The motion is granted.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises out of Plaintiff Dianne Van Hook's (Plaintiff) termination as Chancellor of the College of the Canyons/Santa Clarita Community College District (District).

After being placed on administrative leave by the District's Board of Trustees, Plaintiff resigned as Chancellor.

Plaintiff contends that she was wrongfully terminated due to a conspiracy by the Board of Trustees to oust her from her position.

The operative First Amended Complaint alleges causes of action against the District and individual Board members, Sebastian Cazares, Joan MacGregor, Jerry Danielson, Edel Alonso and David Andrus (collectively, the Individual Defendants) for: (1) Breach of Written Contract against the District, (2) Breach of the Implied Covenant of Good Faith and Fair Dealing against the District, (3) Wrongful Termination By Constructive Discharge against the District, (4) Wrongful Termination In Violation of Public Policy against the District, (5) Wrongful Termination – Age Discrimination (Government Code 12940(a)) against the District, (6) Wrongful Termination – Racial Discrimination (Government Code 12940(a)) against the District, (7) Hostile Work Environment (Government Code 12940(a)) against the District, (8) Aiding and Abetting Retaliation, Discrimination and Harassment (Government Code 12940(a)) against the Individual Defendants, (9) Violation of Due Process of Permanent Public Employee – (California Constitution, Article 1, Section 7) against all of the Defendants, (10) Retaliation - Government Code 12940(h)) against the District, (11) Failure to Provide Personnel File (Labor Code 1198.5) against the District, (12) Common Law Harassment against all Defendants, (13) Conversion against all Defendants except MacGregor and (14) Intentional Infliction of Emotional Distress against all Defendants.

Non-Party Erin Tague is a current employee of the District and a former employee of Antelope Valley Community College District (AVCCD). Plaintiff contends that a witness, Sharlene Coleal, testified that Tague falsely implicated Plaintiff in a kickback scheme, which led to Plaintiff being placed on administrative leave and termination. Based on the foregoing, Plaintiff seeks personal/employment records of Tague from Tague's employment

with AVCCD.

On 3/13/26, Plaintiff served a deposition subpoena for production of business records on Michele Schottelkorb, Antelope Valley Community College District. Plaintiff sought, "All complaints, grievances, or claims made by or concerning Erin Tague (DOB: 02/1979) while she was employed at Antelope Valley Community College." Despite meet and confer efforts, the parties could not resolve the issues the District and Tague have with the subpoena.

Therefore, on 4/14/26, the District and specially appearing Tague filed and served the instant motion seeking an order quashing the subpoena duces tecum of Plaintiff Dianne Van Hook issued upon non-party, Michele Schottelkorb, Director of Antelope Valley Community College District (AVCCD) on the following grounds: (1) Plaintiff's subpoena did not comply with CCP 1985.3, 1985.6, and 2020.410; (2) Plaintiff's subpoena seeks to invade Tague's constitutional right to privacy; (3) Plaintiff's subpoena seeks documents that are irrelevant and not reasonably calculated to lead to the discovery of admissible evidence; and (4) Plaintiff's subpoena is vague and is not limited in time or scope. On 6/10/26, a Stipulation and Order was entered whereby the parties agreed to waive the first ground of the motion based on defective notice and allow the motion to proceed on the remaining grounds. (See 6/10/26 Stipulation and Order).

Plaintiff has opposed the motion and the District and Tague have filed a reply to the opposition.

ANALYSIS

The District's objections, numbers 1-4, to the declaration of Plaintiff are sustained.

The District's objections, numbers 5-6, to the declaration of Jim Schrage are sustained.

The District's objection, number 7, to the deposition transcript of Sharlene Coleal (Exhibit A to the Declaration of Jeffrey Hacker) is sustained.

Upon motion, the Court may "make an order quashing the

subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person." See CCP 1987.1(a).

Under California law, employment personnel files are subject to privacy and confidentiality protections. Board of Trustees of Leland Stanford Jr. University v. Superior Court (Dong) (1981) 119 CA3d 516, 526; Harding Lawson Associates (1992) 10 CA4th 7, 10.

As such, Tague's personnel file from AVCCD is presumptively protected and Plaintiff has an high burden to establish her need for the discovery outweigh Tague's privacy rights. See Rancho Publications (1999) 68 CA4th 1538, 1549.

Plaintiff has failed to meet her burden of establishing that her need for the information outweighs Tague's right to privacy. Plaintiff claims to need the information requested in the subpoena based on Sharlene Coleal's deposition testimony that Tague falsely claimed that Plaintiff engaged in a kickback scheme with a company involved in the construction of a proposed Advanced Technology Center at College of the Canyons and that Tague had "secret meetings" with the Board of Trustees where she disclosed the alleged false information. (See Opposition, p.4:26-p.5:3). Plaintiff contends that Tague's employment records are highly relevant to Tague's credibility and to discover whether Tague engaged in similar conduct while employed at AVCC. (Id., p.6:26-28). Plaintiff further contends that Tague created a false narrative that resulted in Plaintiff's discharge. (Id., p.9:4-6).

This action concerns actions taken by the District, the Individual Defendants and Plaintiff. Tague is not a party to this action. Tague has not been deposed. There is no evidence that the District relied on any information purportedly supplied by Tague when placing Plaintiff on administrative leave. Therefore, Tague's credibility is not at issue. However, even if everything Coleal testified to regarding Tague is true and it is presumed that the District relied upon the alleged false information, Plaintiff must still prove that the District improperly placed her on administrative leave. Any action taken by anyone while Tague was employed by AVCCD is irrelevant to Plaintiff's constructive termination claim against the District in this action.

Plaintiff also ignores the fact that the subpoena seeks formal written complaints by and/or about Tague while she was employed at AVCCD when the purported actions by Tague concerning Plaintiff while she was employed by the District concern informal, verbal discussions. As such, the information would not support a pattern of the same conduct.

Plaintiff has also not made a showing that the sought after information is not available from other sources such as deposing Tague or others who may or may not corroborate Coleal's deposition testimony. Additionally, the current protective order in this action does not justify an invasion of a non-party's right to privacy when the information sought has not been shown to be relevant to the claims in the action.

Even if the foregoing issues did not exist, the subpoena is overbroad as it seeks "all complaints, grievances, or claims made by or concerning Erin Tague" over the entirety of her fourteen-year tenure at AVCCD, regardless of date or subject matter.

Such a demand is impermissibly overbroad. See *Dong*, supra at 526; *Life Technologies Corp. v. Superior Court (Joyce)* (2011) 197 CA4th 640, 652-653.

CONCLUSION

The motion is granted.